

Participation Agreement
IBM East Africa

Agreement # **4998CM0379**
PA# **CW3647555**

EFFECTIVE DATE OF THIS PARTICIPATION AGREEMENT ("PA"): 10.07.2023

This PA between IBM East Africa Limited ("Buyer") and George P Johnson Company ("Supplier") adopts and incorporates by reference all of the terms and conditions of the Base Agreement # 4998CM0379 in effect as of the date hereof ("Base Agreement"). This PA automatically incorporates any future amendments to the Base Agreement referenced in this, and will be made a part of this PA to the extent that the amendments do not conflict with the terms of this PA unless otherwise agreed to in writing by the parties to this PA.

The parties to this PA agree that purchases and sales of the Deliverables, Products or Services, as defined in the Base Agreement, will be conducted in accordance with, and be subject to, the terms and conditions of this PA, the Base Agreement and any applicable Work Authorizations.

AMENDMENTS: The following terms and conditions amend provisions of the Base Agreement to bring the conduct of the parties' transactions into conformity with local law and practice.

1.0 Prior Communications and Order of Precedence

In the event of any conflict in the terms of the Base Agreement, the order of precedence will be: (i) the quantity, payment and delivery terms of the relevant WA; (ii) the relevant SOW; (iii) this PA; (iv) the Base Agreement; and (v) the remaining terms of the relevant WA.

2.0 Choice of Law and Forum; Waiver of Jury Trial; Limitation of Action

The following replaces the Subsection titled *Choice of Law and Forum; Waiver of Jury Trial; Limitation of Action* of the referenced Base Agreement: Both parties agree to the application of the laws of England without regard to conflict of law principles where the Supplier is not incorporated in Kenya and the laws of Kenya will apply where the Supplier is incorporated in Kenya.

The application of the above referenced laws is without regard to applicable conflict of laws principles. The United Nations Convention on Contracts for the International Sale of Goods does not apply. The parties expressly waive any right to a jury trial regarding disputes related to this Agreement. Unless otherwise provided by applicable law without the possibility of contractual waiver or limitation, any legal or other action related to a breach of this Agreement must be commenced no later than two (2) years from the date on which the cause of action arose.

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3.0 Data Privacy

In addition to the parties obligations under the "Exchange of Information" Subsection of the referenced Base Agreement or any disclosure/nondisclosure agreements, where under this PA Buyer discloses information relating to an identified or identifiable individual, partnership, corporation or other legal entity ('Personal Data') Supplier will apply appropriate technical and organizational security measures to protect Personal Data against destruction, loss, alteration, unauthorized disclosure or access, and against all other unlawful forms of processing (including, but not limited to, ensuring the reliability of any personnel who have access to the Personal Data). Supplier represents and warrants: (i) that it will comply with applicable data protection laws and regulations (including any requirement for notification to, or registration with, country data protection authorities), and (ii) that it will only access, use, manage, disclose to third parties, transfer overseas or otherwise process Personal Data in accordance with Buyer's instructions. Buyer generally instructs Supplier to process Personal Data to the extent necessary to perform this PA. Supplier will promptly assist Buyer in responding to requests to allow access to, correct, block, suppress or delete any Personal Data, including providing Buyer with a copy of all relevant Personal Data in tangible form. Supplier will not transfer any Personal Data out of any country having data protection laws and/or regulations restricting transfers of Personal Data unless that transfer is unavoidable in order for Supplier to perform its obligations under this PA, or where Buyer consents to the transfer in writing. Buyer may, upon reasonable notice, audit and verify Supplier's compliance with the provisions of this Section. On termination of this PA Supplier shall, at Buyer's request, promptly return or erase all Personal Data stored in its internal systems.

4.0 Ongoing Warranties

The following sentence is added to this section: It is the Supplier's obligation to ensure to comply with any laws/regulations applicable in the country the end-user/customer is located.

5.0 Supplier and Supplier Personnel

The following sentence is added to this section: Supplier will comply with the provisions of the applicable laws on Employment of Foreigners and Buyer has the right to request evidence with regard to that compliance.

6.0 Business Ethics/FCPA

Supplier agrees to comply with the highest ethical principles in performing under this Agreement. Supplier will not offer or make payments or gifts (monetary or otherwise) to anyone for the purpose of wrongfully influencing decisions in favor of Buyer directly or indirectly. Buyer may terminate this Agreement immediately in case 1) a breach of this clause or 2) when Buyer reasonably believes such a breach has occurred or is likely to occur.

7.0 Assignment

Buyer reserves the right to assign its rights, delegate or subcontract its duties under this Agreement in whole or in part to third parties or Buyer's Affiliates without notice or the prior written consent of Supplier.

8.0 Survival

In the event the Base Agreement is terminated, the terms and conditions of the Base Agreement incorporated by reference herein shall survive such termination and remain in effect for purposes of this PA only.

9.0 Access to Premises

The following sections are to be deleted from the Subsection titled *Access to Premises* of the referenced Base Agreement:

Supplier will:

1. to the extent permitted by local law, ensure that Supplier Personnel assigned to work on Buyer's premises will participate in a pre-employment criminal background check covering the counties in which the person was employed or resided for the past seven years (or longer as required by State legislation), and inform Buyer of any negative findings;
2. inform Buyer if a former employee of Buyer will be assigned work under this Agreement, such assignment subject to Buyer approval;

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ACCEPTED AND AGREED TO:		ACCEPTED AND AGREED TO:	
By: IBM East Africa Limited		By: George P Johnson Company	
Buyer Signature	Date	Supplier Signature	Date
Printed Name: Krisztina Velkei		Printed Name:	
Title and Organisation: Sourcing Buyer – Global Procurement		Title and Organisation:	
Buyer Address: The Atrium, 4th Floor, Junction of Chaka & Leana Road, Kilimani, P.O. Box 35475, Nairobi, 110, KE, 00200		Supplier Address: 50 Oliver St Studio 5, North Easton, MA, 02356-1446, United States	